

# **LEBANON 2013 HUMAN RIGHTS REPORT**

## **EXECUTIVE SUMMARY**

Lebanon is a parliamentary republic, with a Maronite Christian president, Shia speaker of the chamber of deputies (Parliament), and Sunni prime minister based on the 1943 National Pact. Parliamentary elections in 2009 were considered peaceful, free, and fair. Government security forces reported to civilian authorities, although the terrorist group Hizballah and Palestinian security and militia forces were outside the direction or control of government officials. Security forces committed human rights abuses.

The most significant human rights abuses during the year were torture and abuse by security forces, harsh prison and detention center conditions, and limitations on freedom of movement for Palestinian and Syrian refugees.

Other human rights abuses included arbitrary arrest and detention; lengthy pretrial detention; a judiciary subject to political pressure and long delays in trials; violation of citizens' privacy rights; some restrictions on freedoms of speech and press, including intimidation of journalists; some restrictions on freedom of assembly; reports of harassment of Syrian political activists and other refugees; restrictions on citizens' right to change their government; official corruption and lack of transparency; widespread violence against women; societal, legal, and economic discrimination against women; trafficking in persons; discrimination against persons with disabilities; systematic discrimination against Palestinian refugees and minority groups; discrimination based on sexual orientation; killings related to societal violence; restricted labor rights for and abuse of migrant domestic workers; and child labor.

Although the legal structure provides for prosecution and punishment, government officials enjoyed a measure of impunity for human rights violations.

Despite the presence of Lebanese and UN security forces, Hizballah retained significant influence over parts of the country, and the government made no tangible progress toward disbanding and disarming armed militia groups, including Hizballah. Palestinian refugee camps continued to act as self-governed entities and maintained security and militia forces not under the direction of government officials.

## **Section 1. Respect for the Integrity of the Person, Including Freedom from:**

**a. Arbitrary or Unlawful Deprivation of Life**

There was one report that the government or its agents committed arbitrary or unlawful killings during the year. In June, Nader Bayoumi, a 36-year-old car mechanic, died while in military custody. Available evidence indicated that beatings led to his death. Bayoumi's family told Human Rights Watch (HRW) that on June 23 he went to the Abra neighborhood in Sidon, where clashes between Islamic activists and the Lebanese Armed Forces (LAF) occurred later that day. He did not return. On June 26, an LAF official informed Bayoumi's family that they could recover his body from the military hospital in Beirut. On July 8, the LAF charged five LAF personnel with violating military orders, abuse of power, and accidentally killing a person, in connection with Bayoumi's death.

The country was increasingly affected by the Syrian crisis, which further polarized its politics, paralyzed many state institutions, generated a massive humanitarian refugee crisis, depressed its economy, inflamed sectarian tensions, and degraded national security. The continued spillover violence led to the unlawful deprivation of life throughout the country, particularly in Tripoli, Aarsal, and the southern suburbs of Beirut.

On July 9, an explosion in the Bir al-Abed area, the Hizballah stronghold within the southern suburbs of Beirut, injured 53 persons. On August 15, an explosion in the al-Rweiss area, another Hizballah stronghold in the southern suburbs of Beirut, killed 27 persons and injured 338 others. A previously unknown group called The Brigade of Aysha, believed to be a Syrian opposition cell, later claimed responsibility for the August 15 attack in a video posted online. On August 23, two bombs exploded simultaneously in front of al-Taqwa and al-Salam mosques in the northern town of Tripoli, killing 47 individuals and injuring 600 others. On September 23, as part of the Ministry of Interior's emergency security plan and in response to deadly blasts in the Beirut southern suburbs, Hizballah withdrew personnel from its informal checkpoints for the first time in recent history and the Internal Security Forces (ISF) and the LAF introduced their own formal checkpoints in the area.

The recurring conflict between the generally pro-Syrian regime Alawite residents of Jabal Mohsen and the nearby generally pro-Syrian opposition Sunni district of Bab al-Tabbaneh in the northern Lebanese city of Tripoli continued during the year, leading to a December 2 decision by the country's senior political leaders to place control of Tripoli's security under the LAF for six months.

On June 23, there were clashes in Abra village in Sidon after armed followers of Sheikh Ahmad al-Assir, imam of Bilal Bin Rabah mosque, allegedly fired on an army checkpoint and the army responded. The clashes lasted for two days and resulted in the death of 16 members of the LAF and injury to 50 other military personnel. Twenty-eight of al-Assir's supporters reportedly also died. Media reported that the LAF arrested as many as 180 persons, releasing most in subsequent days but charging 27 with attacking the LAF.

On February 1, military court judge Saqr Saqr charged Mahmoud Hayek with the July 2012 attempted assassination of Boutros Harb, a member of the March 14 opposition parliamentary alliance. The court also charged Hayek with carrying out terrorist activity. Harb asserted that Hayek refused to appear before the investigative bodies because he was reportedly a member of Hizballah's security apparatus.

On October 10, the Special Tribunal for Lebanon (STL), which operated based upon an agreement between the UN and the Lebanese government, indicted Hassan Habib Merhi, a Hizballah member, as a fifth suspect in the 2005 killing of former prime minister Rafik Hariri and 22 other individuals. In 2011 the STL indicted four individuals, Mustafa Amine Badreddine, Hussein Hassan Oneissi, Salim Jamil Ayyash, and Assad Hassan Sabra, all of whom were Hizballah operatives suspected of collaborating in the 2005 killings. Due to the incidents' similar nature and gravity, the STL also established its jurisdiction over the killing of former Communist Party leader George Hawi and attacks on former ministers Elias Murr and Marwan Hamadeh. Lebanese authorities, however, notified the STL that they were unable to serve the accused with the indictments or arrest them.

## **b. Disappearance**

There were no confirmed reports that security forces were responsible for disappearances during the year.

On August 9, armed men kidnapped Murat Agca and Murat Akpinar, two Turkish pilots working for Turkish Airlines, while they were on a crew bus traveling from the airport to a hotel. Zuwar al Imam Reda, a previously unknown Shia group, stated that it carried out the kidnapping-abduction and demanded the release of a group of Lebanese Shia pilgrims kidnapped in Syria in May 2012. Authorities arrested three persons in connection with the kidnapping. On October 19, the

kidnappers released the pilots subsequent to the release of the Shia pilgrims in Syria.

On July 1, a former detainee told HRW that his family still had no information about his brother, who had been missing since the clashes on June 23. The family believed he was still in detention because military intelligence officials asked one of the family members to bring the missing man's cell phone to their local branch. The former detainee also said that, after his release, he informed several families in his neighborhood about his having seen their relatives in detention, which was the first information the families had received regarding the detainees.

Syrian opposition activists asserted that Syrian agents in Lebanon targeted them. Subsequently, they claimed they had to operate clandestinely for their protection.

Syrians who fled to Lebanon, including political activists and other refugees, risked targeting, harassment, and kidnapping by Syrian and Lebanese security services as well as by others. In September 2012 the government commissioner to the Military Court, Judge Saqr, charged eight detainees belonging to the al-Maqdad clan with "forming an armed group to carry out terrorist activities." They were accused of abducting and intimidating persons using weapons, threatening military personnel, and possessing unlicensed arms. Judge Saqr requested transfer of the detainees to the first military investigative judge and demanded issuance of arrest warrants in their names to detain them further. The investigation remained pending at year's end.

### **c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment**

The law does not specifically prohibit all forms of torture or cruel, inhuman, or degrading treatment or punishment, and there were reports that security officials employed such practices. The penal code prohibits using acts of violence to obtain a confession or information about a crime, but the judiciary rarely investigated or prosecuted such allegations. According to domestic and international human rights groups, security forces abused detainees and used torture to obtain confessions or encourage suspects to implicate other individuals.

Human rights organizations reported that torture occurred in certain police stations, the Ministry of Defense's detention facilities, and in the Information Branch of the ISF. The government continued to deny the use of torture, although authorities acknowledged that violent abuse sometimes occurred during preliminary

investigations at police stations or military installations, where suspects were interrogated without an attorney. Such abuse occurred despite national laws prohibiting judges from accepting confessions extracted under duress.

On June 26, HRW released a report, *It's Part of the Job: Ill-treatment and Torture of Vulnerable Groups in Lebanese Police Stations*, which stated that the ISF threatened, mistreated, and tortured drug users; sex workers; and lesbian, gay, bisexual, and transgender (LGBT) persons in their custody. The report was based on more than 50 interviews with persons arrested for suspected drug use, sex work, or homosexuality over the previous five years, who reported that members of the ISF subjected them to abuse and mistreatment. The most common forms of abuse reported were blows from fists, boots, or implements, such as sticks, canes, and rulers. Seventeen former detainees stated that security members denied them food, water, or required medication or that authorities confiscated their medication; nine reported being handcuffed in bathrooms or kept in extremely uncomfortable positions for extended periods; and 11 stated that authorities forced them to listen to the screams of other detainees to induce them to cooperate or confess. One former detainee claimed he was sexually violated when accused of being gay. The ISF responded that the report defamed the organization on the local and international level and called for verification of the cases because they were unproven allegations and claims.

Former prisoners, detainees, and reputable local human rights groups reported that methods of torture and abuse included hanging detainees by the wrists while they were tied behind the back, violent beatings, blows to the soles of the feet, electric shocks, sexual abuse, immersion in cold water, extended periods of sleep deprivation, being forced to stand for extended periods, threats of violence against relatives, deprivation of clothing, withholding of food, being deprived of toilet facilities, and continuous blindfolding. In June HRW interviewed five men and two teenagers detained following the Sidon clashes for periods ranging from several hours to six days but later released without charges. All the former detainees claimed that army personnel kicked and beat them with fists and, in some cases, with sticks, cables, and batons during initial interrogations at checkpoints. HRW reported that, when interviewed, all the detainees still bore visible marks consistent with beatings. In two cases large areas of the detainees' arms, legs, buttocks, and backs were covered with bruises, and they had marks from beatings on their heads and faces. Two detainees presented marks that they asserted soldiers inflicted by burning them with cigarettes, and some said that they had witnessed the abuse of other detainees.

In August 2012 Reporters Without Borders (RSF) stated that armed men kidnapped Rami Aysha, a journalist who had worked for several major international media publications. The men reportedly beat Aysha, broke his finger, put a pistol to his head, and broke his camera over his head. RSF stated that Aysha was later transferred to the military intelligence services and subsequently to military police, where the mistreatment continued. Authorities charged him with weapons smuggling and held him in prison for nearly one month before releasing him in September 2012. At year's end, the investigation had not produced any results.

### **Prison and Detention Center Conditions**

Prison and detention center conditions were harsh and often included a lack of access to basic sanitation. In some prisons, such as the central prison in Roumieh, conditions were life threatening.

Physical Conditions: As of December 17, there were 5,290 prisoners and detainees, including pretrial detainees and remand prisoners, in facilities built to hold 3,500 inmates. The central prison in Roumieh, with a capacity of 1,500, held approximately 2,479 persons. Pretrial detainees often were held together with convicted prisoners. Men and women were held separately in similar conditions, and ISF statistics indicated that 893 minors and 189 women were incarcerated.

Sanitary conditions in overcrowded prisons were poor, and they worsened in Roumieh following the destruction of much of the infrastructure, including plumbing and central air conditioning, during a riot in 2011. According to a government official, most prisons lacked adequate sanitation, ventilation, and lighting, and temperatures were not regulated consistently. Prisoners did not have consistent access to potable water. Many of the prisons were damp, and some, such as the Zahle men's prison, did not provide beds for the inmates. Roumieh prisoners slept on bedrolls, often 10 to a room that originally was built to accommodate two prisoners in beds. Officials admitted that they regularly received complaints regarding the lack of access to basic and emergency medical care as well as extreme overcrowding. According to ISF statistics, 13 prisoners died in 2012: Eleven of these prisoners died due to medical reasons, one committed suicide, and one was killed in prison. The ISF also reported that during 2012 there were four cases of prisoner-on-prisoner rape and one case of guard-on-prisoner rape. Some nongovernmental organizations (NGOs) complained of authorities' negligence and failure to provide appropriate medical care, which may have contributed to some of the deaths.

There were reports of female prisoners exchanging sex in return for “favors,” such as cigarettes, food, more comfortable conditions in their cells, or a more lenient police report.

Administration: Recordkeeping was not adequate. In many prisons inmates who completed their sentences remained in custody due to poor recordkeeping. Some juveniles benefitted from alternative sentencing. Although there is a legal means to impose a sentence of probation or supervised release for adults in lieu of incarceration, it was not applied. A person sentenced to imprisonment for more than six months may obtain a sentence reduction upon demonstrating good behavior, that he does not pose a threat to himself or others, and that he has met certain conditions depending on the category of crime and the release order. The Commission on the Reduction of Sentences considered sentence reduction requests. A chamber of the Court of Appeal, which made the final decision on whether to reduce a sentence, reviewed the commission’s recommendations.

There were no prison ombudsmen and, according to one government official, there was no uniform, formal channel for prisoners and detainees to submit complaints to judicial authorities. Authorities did not implement a 2005 law establishing an ombudsman to serve on behalf of citizens. The ISF, however, posted signs stating detainees’ rights and had an inspection unit. The minister of interior assigned a general-rank official as the commander of the inspection unit and a colonel-rank official as the commander of the medical and human rights unit. The units were instructed to investigate every claim. After an investigation was completed, the claim was transferred to the inspector general for action, in the case of a disciplinary act, or to a military investigative judge for additional investigation. If physical abuse was found, the military investigator assigned a medical team to confirm the abuse, and the judge ruled at the end. There were no statistics available at year’s end regarding the number of claims, investigations, and disciplinary or judicial actions taken.

Families of prisoners normally contacted the Ministry of Interior to report complaints, although prison directors could also initiate investigations. Investigations tended to be conducted by NGOs, not the ministry. According to a government official, prison directors often protected officers under investigation.

Inmates could receive visitors once or twice per week, with the frequency of visits varying, depending on the severity of the inmate’s crime. Prison officials allowed religious observance.

There was a human rights department in the Ministry of Interior to monitor and improve prison conditions. The department was staffed with two officers, two sergeants, and an information technology specialist, in addition to the head of the department. The ISF's Committee to Monitor against the Use of Torture and Other Inhuman Practices in Prisons and Detention Centers conducted a minimum of one or two visits per week. The parliamentary human rights committee was responsible for monitoring the Ministry of Defense detention center.

Independent Monitoring: The government permitted independent monitoring of prison and detention conditions by local and international human rights groups and the International Committee of the Red Cross (ICRC), and such monitoring took place. During 2012 the ICRC visited 5,183 prisoners in 16 prisons and detention centers.

Nongovernmental entities, such as Hizballah and Palestinian militias, also operated detention facilities, but no information about these facilities was available.

Improvements: On July 3, the EU funded a 30-month project to improve conditions in women's prisons. In cooperation with prison authorities, the project, Promoting Human Rights Policy and Practice in Lebanese Women's Prisons, aimed to improve the human rights of inmates in the four women's prisons-- Baabda, Tripoli, Zahle, and Barbar el-Khazen-- by enhancing the legal and social support they received, encouraging them to report abuses, and promoting regulatory improvements.

#### **d. Arbitrary Arrest or Detention**

The law requires judicial warrants before arrests except in cases of active pursuit, but the government arbitrarily arrested and detained persons.

#### **Role of the Police and Security Apparatus**

The ISF, under the Ministry of Interior, enforced laws, conducted searches and arrests, and referred cases to the judiciary. The General Directorate for State Security, reporting to the prime minister, and the Directorate of General Security (DGS), under the Ministry of Interior, were responsible for border control. The LAF, under the Ministry of Defense, is responsible for external security but also may arrest and detain suspects on national security grounds. Both the security directorate and the DGS collected information on groups deemed possible threats



to state security. Each security apparatus had its own internal mechanisms to investigate cases of abuse and misconduct. In January 2012 the ISF issued a code of conduct to define the obligations of ISF members and the legal and ethical standards by which they must abide in performing their duties. Various security forces underwent training on the code.

Security force officials, however, reportedly enjoyed implicit impunity due to the lack of publicly available information on the outcome of prosecutions. For example, during the battle of Sidon in June, military intelligence officers were charged in the death of Nader Bayoumi, who died in custody. Following the indictment of an officer and a number of soldiers, no additional information was made public on the consequences, if any, that the officer and soldiers faced.

### **Arrest Procedures and Treatment of Detainees**

The law generally requires a warrant for arrest and provides the right to a lawyer, a medical examination, and referral to a prosecutor within 48 hours of arrest. If authorities hold a detainee longer than 48 hours without formal charges, the arrest is considered arbitrary, and the detainee must be released or a formal extension requested. In such cases officials responsible for the prolonged arrest may be prosecuted on charges of depriving personal freedom, but authorities rarely filed charges. The law requires authorities to inform detainees what charges have been filed against them. A suspect caught in the act of committing a crime must be referred to an examining judge, who decides whether to issue an indictment or order the release of the suspect. By law bail is available in all cases regardless of the charges, although the amounts required may be prohibitively high.

The law provides detainees prompt access to a lawyer and to family members. The state does not provide legal assistance, but the Beirut Bar Association and Tripoli Bar Association provided lawyers for indigent defendants.

Authorities failed to observe many provisions of the law, and government security forces, as well as extralegal armed groups such as Hizballah, continued the practice of extrajudicial arrest and detention, including incommunicado detention. In addition, the law permits military intelligence personnel to make arrests without warrants in cases involving military personnel or involving civilians suspected of espionage, treason, or weapons possession.

Arbitrary Arrest: According to local NGOs, there were clear cases of arbitrary detention and torture. Civil society groups reported that authorities frequently detained citizens and foreign nationals arbitrarily.

Pretrial Detention: According to ISF statistics, 3,981 of the more than 5,000 persons in prison were in pretrial detention as of December 17. The Office of the UN High Commissioner for Human Rights expressed concern about arbitrary pretrial detention without access to legal representation and refused to support construction of new prisons until the serious problem of arbitrary pretrial detention was resolved. According to a study by the Lebanese Center for Human Rights (CLDH), detainees spent one year on average in pretrial detention prior to their sentencing. Individuals accused of murder spent on average 3.5 years in pretrial detention.

State security forces and rival Palestinian factions subjected Palestinian refugees to arbitrary arrest and detention. No statistics on the number of such cases were available.

#### **e. Denial of Fair Public Trial**

Although the constitution provides for an independent judiciary, the judiciary was subjected to political pressure, particularly in the appointment of key prosecutors and investigating magistrates. Influential politicians and intelligence officers intervened at times and used their influence and connections to protect supporters from prosecution. Persons involved in routine civil and criminal proceedings sometimes solicited the assistance of prominent individuals to influence the outcome of their cases.

#### **Trial Procedures**

Defendants are presumed innocent until proven guilty. There is no trial by jury. Trials are generally public, but judges have the discretion to order a closed court session. Defendants have the right to be present at trial, to consult with an attorney in a timely manner, and to question witnesses against them. Defendants could present witnesses and evidence, and their attorneys had access to government-held evidence relevant to their cases. Defendants have the right of appeal and the right not to be compelled to testify or confess guilt.

The Military Court has jurisdiction over cases involving the military as well as those involving civilians accused of espionage, treason, weapons possession, and

draft evasion. Civilians may be tried on security charges, and military personnel may be tried on civil charges. The Military Court has two tribunals: the permanent tribunal and the cassation tribunal. The latter hears appeals from the former. A civilian judge chairs the higher court. Defendants on trial under the military tribunal have the same procedural rights as defendants in ordinary courts. Human rights groups expressed concerns over the trial of civilians in military courts, the extent to which they were afforded full due process, and the lack of review of verdicts by ordinary courts.

Palestinian groups in refugee camps operated an autonomous and arbitrary system of justice outside the control of the state. For example, local popular committees in the camps attempted to resolve disputes using tribal methods of reconciliation. If the case involved a killing, the committees occasionally transferred the accused to state authorities for trial.

### **Political Prisoners and Detainees**

There were no reports of political prisoners or detainees.

### **Civil Judicial Procedures and Remedies**

There is an independent judiciary in civil matters, but it was seldom used to bring civil lawsuits seeking damages for government human rights violations. During the year there were no examples of a civil court awarding an individual compensation for such violations.

### **f. Arbitrary Interference with Privacy, Family, Home, or Correspondence**

The law prohibits such actions, but authorities frequently interfered with the privacy of persons regarded as enemies of the government.

The law provides for the interception of telephone calls with prior authorization from the prime minister upon a request made by either the minister of interior or minister of defense.

Militias and non-Lebanese forces operating outside the area of central government authority also frequently violated citizens' privacy rights. Various factions, such as Hizballah, used informer networks and telephone monitoring to obtain information regarding their perceived adversaries.

Personal status is legally handled by religious courts, which applied sharia law differently in each province and occasionally interfered in family matters.

## **Section 2. Respect for Civil Liberties, Including:**

### **a. Freedom of Speech and Press**

The law provides for freedom of speech and press and stipulates that restrictions may be imposed only under exceptional circumstances. The government generally respected these rights, but there were some restrictions, particularly regarding political and social issues, such as criticism of the president or other heads of states.

Freedom of Speech: Individuals are free to criticize the government but are legally prohibited from publicly criticizing the president and foreign leaders. Authorities also hindered the expression of certain views. Activists promoting democratic reform in Syria complained of harassment and the lack of protection offered by the government. NGOs that advocated for women's rights, particularly those focused on combating domestic violence, organized protests, and media campaigns that met with some interference by the security forces.

Press Freedoms: Independent media were active and expressed a wide variety of views. The majority of media outlets had political affiliations, which hampered their ability to operate freely in areas dominated by other political groups and affected their reporting. Local, sectarian, and foreign interest groups financed most media outlets that reflected their views. The law restricts the freedom to issue, publish, and sell newspapers. Publishers must apply for and receive a license from the minister of information in consultation with the press union.

The law governing the audiovisual media bans live broadcasts of unauthorized political gatherings and certain religious events and prohibits the broadcast of "any matter of commentary seeking to affect directly or indirectly the well-being of the nation's economy and finances, material that is propagandistic and promotional, or promotes a relationship with Israel." Media outlets must receive a license from the Council of Ministers, based on a recommendation by the minister of information, to broadcast direct and indirect political news and programs. The law also prohibits broadcasting programs that seek to affect the general system, harm the state or its relations with Arab and foreign countries, or have an impact on the well-being of such states. The law also prohibits the broadcast of programs that seek to harm public morals or that ignite sectarian strife or insult religious beliefs.

On August 26, caretaker Information Minister Walid Daouk asked the National Audiovisual Media Council to convene and warn Marcel Ghanem, the producer and presenter of the political talk show, *Kalam En-Nas*, which aired on Lebanese Broadcasting Corporation International (LBCI). The show had broadcast a picture of burned bodies, which Ghanem claimed to be victims of explosions that occurred in the northern city of Tripoli but which proved to be victims of an incident in Morocco. Authorities accused Ghanem of inciting sectarian sentiment and requested the station to broadcast an apology, which the show then published on its website. Caretaker Minister Daouk later voiced support for Ghanem and quelled the issue.

In 2011 the Criminal Investigation Service in Beirut opened a criminal investigation against CLDH staff members Marie Daunay and Wadih Al-Asmar on the charge of inciting sectarian strife in connection with the 2011 publication of the CLDH report, *Arbitrary Detention and Torture: The Bitter Reality of Lebanon*. The investigation continued at year's end.

Violence and Harassment: On November 26, customs officials reportedly beat and detained an Al-Jadeed television news crew for attempting to cover a story on corruption within the customs agency. Authorities dispatched the LAF to quell the dispute. Al-Jadeed filed suit, and the customs agency filed a countersuit. Authorities questioned numerous customs officials, and the investigation continued at year's end.

In June 2012 gunmen attacked al-Jadeed television's headquarters in Beirut, opening fire on the building, hurling Molotov cocktails, and burning tires. The station claimed that the attack was politically motivated, prompted by its broadcast of an interview with controversial Sunni Sheikh Ahmed al Assir. Authorities released Wissam Alaeddine, one of the gunmen arrested at the scene, on bail in August 2012. Press reports suggested that Hizballah officials visited Alaeddine in custody and possibly intervened on his behalf. The government took no action concerning the attack, and the case remained unresolved at year's end.

Censorship or Content Restrictions: The law permits, and authorities selectively used, prior censorship of pornographic material, political opinion, and religious material considered a threat to national security or an offense to the dignity of the head of state or foreign leaders. The DGS reviewed and censored all foreign newspapers, magazines, and books before they entered the country. Political violence and extralegal intimidation led to self-censorship among journalists.

The law includes guidelines regarding materials deemed unsuitable for publication in a book, newspaper, or magazine. Any violation of the guidelines may result in the author's imprisonment or a fine.

Authorities of any of the recognized religions may unilaterally request the DGS to ban a book. The government may prosecute offending journalists and publications in the publications court.

On June 29, amid controversy over Hizballah's alleged participation in an LAF operation against a radical Sunni cleric, the LAF released a statement and threatened legal action against news outlets which broadcast film that appeared to confirm Hizballah's role in that operation.

Libel Laws/National Security: The 1991 security agreement between the Lebanese and Syrian governments, still in effect at year's end, contains a provision prohibiting the publication of any information deemed harmful to the security of either state. During the year there were no publications of this nature.

Nongovernmental Impact: Opposition groups sometimes sought to inhibit freedom of the press. On May 9, Hizballah members detained and interrogated journalist Rabih Damaj for five hours before releasing him.

Authors could publish books without prior permission from the DGS, but if the book contained material that violates the law, the DGS could legally confiscate the book immediately and put the author on trial. In some cases authorities might see the offending material as a threat to national security. Such offenses were not taken to trial based on the publication law, but on the basis of criminal law or other statutes. Publishing a book that has not received prior approval and which contains unauthorized material could put the author at risk of a prison sentence, fine, and confiscation of the published materials.

## **Internet Freedom**

The law does not restrict access to the internet. There was a perception among knowledgeable sources, however, that the government monitored e-mail, Facebook, Twitter, blogs, and internet chat rooms where individuals and groups engaged in the expression of views. The government reportedly censored some websites to block online gambling, pornography, and religiously provocative

material, but there were no verified reports that the government attempted to collect personally identifiable information via the internet in a systematic way.

In the absence of laws governing online media and activities on the internet, the ISF's Anticybercrime Office and other state agencies summoned a number of journalists, bloggers, and activists to question them over tweets, Facebook posts, and blog posts critical of political figures. Restrictions on freedom of speech concerning the president applied to social media communications on Facebook and Twitter, which authorities considered a form of publication rather than private correspondence. There were also reports of political groups intimidating individuals and activists for their online posts. For example, Hizballah supporters continuously threatened journalism student Marwa Olleik over material she posted on Facebook in support of the Syrian revolution and against Hizballah's interference in Syria. There were reports of hacking incidents involving government, news, and political websites.

Internet access was available and widely used by the public. According to the World Bank, 62 percent of the population used the internet in 2012.

### **Academic Freedom and Cultural Events**

There are no government restrictions specific to academic freedom, but libel and slander laws apply.

During the year the government censored films, plays, and other cultural events. The DGS reviewed all films and plays and prohibited those deemed offensive to religious or social sensitivities. Cultural creators and those involved in the arts practiced self-censorship. On October 9, the DGS Censorship Bureau banned two films scheduled to play at the Beirut International Film Festival, *L'inconnu du lac* (*Stranger by the Lake*) and *I Offered You Pleasure*, which explored controversial issues involving sexuality.

### **b. Freedom of Peaceful Assembly and Association**

#### **Freedom of Assembly**

The law provides for freedom of assembly, but the government sometimes restricted this right. Organizers are required to obtain a permit from the Ministry of Interior three days prior to any demonstration. In previous years the ministry

sometimes did not grant permits to groups that opposed government positions, but there were no known examples of this restriction during the year.

Security forces occasionally intervened to disperse demonstrations, usually when clashes broke out between opposing protesters.

On June 20, civil society activists clashed with the ISF and parliamentary security forces in downtown Beirut during a protest against the extension of parliament's term. Security forces used riot batons to beat protesters who were throwing bottles and attempting to break through security lines to reach parliament.

### **Freedom of Association**

The law provides for freedom of association, and the government generally respected the law, although there were some conditions.

No prior authorization is required to form an association, but the Ministry of Interior must be notified for the entity to be recognized as legal, and it must verify that the organization respects public order, public morals, and state security before it issues a receipt. The ministry sometimes imposed additional inconsistent restrictions and requirements and withheld receipts, turning the notification process into an actual approval process. In some cases the ministry sent notification of formation papers to the security forces to initiate inquiries on an organization's founding members. Organizations must invite ministry representatives to any general assembly where members vote on bylaws, amendments, or positions on the board of directors. The ministry must then validate the vote or election. Failure to do so could result in the dissolution of the organization, possible only by a decree issued by the Council of Ministers.

The cabinet must license all political parties (see section 3).

Independent NGOs in areas under Hizballah's sway faced harassment and intimidation. Local NGOs working in the southern part of the country faced social, political, and financial pressures. For example, the Youth Network for Civic Activism (YNCA), which primarily worked in the predominantly Shia southern town of Nabatiyeh, gained attention for hosting numerous controversial events, such as talks on sectarianism, co-ed dancing in the town's streets, and youth activism against drug use. Despite being able to organize such events, YNCA continued to face significant social pushback because of its activities. Young persons attending YNCA events were harassed, windows in YNCA facilities were



broken, and the organization's requests to host events were regularly and inexplicably rejected by the municipality. Financing also played a significant role in drawing youth away from "problematic" local NGOs. Hizballah reportedly paid youth who worked in "unacceptable" NGOs to leave the groups.

### **c. Freedom of Religion**

See the Department of State's *International Religious Freedom Report* at [www.state.gov/j/drl/irf/rpt/](http://www.state.gov/j/drl/irf/rpt/).

### **d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons**

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, and the government generally respected these rights for citizens but placed limitations on the rights of Palestinian refugees. As of November 21, the Office of the UN High Commissioner for Refugees (UNHCR) provided protection and support to 746,203 refugees and asylum seekers, the vast majority of whom were from Syria. The UN Relief and Works Agency for Palestine Refugees in the Near East (UNRWA) provided assistance specifically to Palestinian refugees registered in Lebanon as well as to those who were registered in Syria and who had fled to Lebanon and were recorded with UNRWA Lebanon. The government cooperated with the UNHCR, UNRWA, and other humanitarian organizations in providing protection and assistance to internally displaced persons (IDPs), refugees, returning refugees, asylum seekers, and other persons of concern.

In-country Movement: The government and militias maintained security checkpoints, primarily in military and other restricted areas. Government forces were usually unable to enforce the law in the predominantly Hizballah-controlled southern suburbs of Beirut and did not typically enter Palestinian refugee camps. According to UNRWA, Palestinian refugees registered with the Ministry of Interior's Directorate of Political and Refugee Affairs could travel from one area of the country to another. The directorate, however, had to approve the transfer of registration of residence for refugees who resided in camps. UNRWA stated that the directorate generally approved such transfers. As of mid-July 2012, the requirement enforced by the LAF to obtain an access permit to enter the Nahr el Bared camp was revoked. Lebanese and Palestinians entering the camps needed only to show their identity cards at the LAF checkpoints outside the camp. Authorities required foreigners to apply for visitor permits from the LAF.

## **Internally Displaced Persons (IDPs)**

UNRWA reported that 5,558 Palestinian refugees had returned to housing units in Nahr el-Bared camp, while another 16,376 were living in areas adjacent to the camp from which they had been displaced when it was destroyed in 2007. During the year approximately 7, 433 Nahr el-Bared residents remained displaced in Beddawi Camp and other areas of the country.

## **Protection of Refugees**

Access to Asylum: The law does not provide for the granting of asylum or refugee status. As a result, 41 percent of non-Syrian and 12 percent of Syrian refugees registered with the UNHCR did not have any legal status and could be arrested. Nonetheless, the government provided some protection through interim arrangements. The government granted admission and temporary (six-month) refuge to asylum seekers but not permanent asylum. The DGS sometimes arbitrarily detained asylum seekers at its detention facility for more than one year before eventually deporting them.

A 2003 agreement between the DGS and the UNHCR recognizes and grants protection to non-Palestinian refugees, providing temporary relief for those seeking determination of refugee status. Those wishing to claim refugee status must do so within two months of arriving in the country. The DGS issued residence permits, valid for three months, during which time the UNHCR had to make a refugee status determination. The DGS issued residency permits for up to 12 months to persons to whom the UNHCR accorded refugee status and who applied and paid for the permit. Refugees receiving residency permits continued to be required to apply and pay fees for permit renewal. This requirement did not apply to Palestinian refugees from Syria. The number of Palestinians refugees fleeing from Syria increased sharply in 2012, and UNRWA expressed concern about the continued safety of this population as their one-year temporary residency permits expired. Both Syrians and Palestinian refugees had to pay the 300,000 Lebanese pound (\$200) fee for a six-month or temporary residency permit, which could be renewed for another six months free of charge, after the one-year permit expired.

There was a huge influx of Syrians who entered Lebanon to escape escalating violence after the start of mass unrest in Syria in 2011. While some Syrians settled in temporary tent settlements, the majority resided with host families, who were not always direct family or friends of the refugees. As of November 15, there were an estimated 816,000 Syrians receiving services from the UNHCR. The

government did not officially recognize these persons as refugees, and it limited freedom of movement for individuals who entered the country illegally. There were no refugee camps for Syrians.

Refoulement: In contrast to previous years, there were no reported cases of refoulement.

Refugee Abuse: Syrian refugees residing inside the border near Syria faced danger from cross-border shelling and reported Syrian army incursions into the country.

According to the UNHCR, domestic courts often sentenced Iraqi and African refugees officially registered with the UNHCR to one month's imprisonment and fines instead of deporting them for illegal entry. After serving their sentences, most refugees remained in detention unless they found employment sponsors and the DGS agreed to release them in coordination with the UNHCR.

According to the ISF, as of December 17, three foreign detainees had completed their sentences and were awaiting deportation by the DGS or regularization of their situation in the country.

Employment: The law does not distinguish between refugees and other aliens. Authorities allowed non-Palestinian refugees residing in the country legally to work in certain sectors, provided they had a sponsor for a work permit and could pay the associated fees.

The law permits Syrians to work and to open businesses after obtaining proper licenses. On July 29, joint teams from the Ministry of Interior and Ministry of Economy began to take action against unlicensed Syrian businesses. The ISF identified 377 illegal businesses operated by Syrians. The majority of these businesses were small stores or fruit stands. Anecdotal evidence indicated that the government was taking action against such businesses, but business owners addressed the problem by obtaining the required licenses. Syrian refugees complained that authorities forced them to obtain the required licenses but did not enforce the same laws against Lebanese.

In 2010 parliament amended the social security law, creating a special account to provide end-of-service indemnities or severance pay to Palestinian refugees who retired or resigned. These benefits were available only to Palestinians working in the legal labor market. Palestinians did not benefit from national sickness and maternity funds or the family allowances fund. UNRWA continued to bear the

cost of any medical, maternity, or family health-care expenses (excluding worker's compensation). The law calculates benefits only from August 2010 onward.

Access to Basic Services: The law considers UNRWA-registered Palestinian refugees to be foreigners, and in several instances they received poorer treatment than other foreign nationals. This discrimination was particularly true for women. UNRWA has the sole mandate to provide health, education, social services, and emergency assistance to the 441,543 registered Palestinian refugees residing in the country. The amount of land allocated to the 12 official Palestinian refugee camps in the country has changed only marginally since 1948, despite a four-fold increase in the population. Consequently, most Palestinian refugees lived in overpopulated camps, some of which were heavily damaged during multiple conflicts. In accordance with their agreement, Palestine Liberation Organization (PLO) security committees, not the government, provided security for refugees in the camps, with the exception of the Nahr el-Bared camp.

During the year Nahr el Bared camp residents protested the reduction of health benefits to levels provided to residents before the camp's destruction in 2007. UNRWA periodically closed its facilities due to concern for staff safety.

Property laws directly and effectively exclude Palestinians due to a 2001 amendment to a 1969 decree barring persons without the nationality of a recognized state from owning land and property. Palestinians who owned property prior to the law entering into force are unable to bequeath it to their heirs, and individuals who were in the process of purchasing property in installments were unable to register the property.

Palestinian refugees residing in the country were not able to obtain citizenship and were not citizens of any other country. Palestinian refugee women married to citizens were able to obtain citizenship and transmit citizenship to their children. Palestinian refugees, including children, had limited social and civil rights and no access to public health, education, or other social services. Children of Palestinian refugees faced discrimination in birth registration, and many had to leave school at an early age to earn an income.

Palestinians who fled Syria received limited basic support from UNRWA, including food aid, cash assistance, and winter clothing vouchers. Authorities permitted their children to enroll in UNRWA schools and access UNRWA health clinics. There were approximately 50,600 Palestinians from Syria registered with the agency at year's end.

Iraqi refugees had access to both the public and private education systems. The UNHCR reported that 600 Iraqi children were registered in public schools, and it provided grants to the children's families to help defray the costs associated with attending school. Iraqi refugees also had access to the primary health-care system. The UNHCR, through NGOs, provided secondary health care.

Syrians who fled to Lebanon had access to the public education system. The Ministry of Education facilitated their enrollment in public schools, and the UNHCR covered school-related expenses, such as school fees, books, and uniforms. The UNHCR arranged with the Ministries of Social Affairs and Public Health for registered Syrians to access designated public health centers and local clinics for primary care services, and the organization covered the bulk of the costs. The large influx of refugees placed extreme burdens on the previously overstretched services, which could not accommodate all Syrian refugees.

A comprehensive, multi-year plan to rebuild the Nahr el Bared refugee camp and surrounding communities in eight stages, begun in 2008, was in process, but remaining reconstruction was not fully funded, and only 55 percent of the required donations had been secured by year's end.

The government did not consider local integration of other refugees, such as Iraqis, a viable durable solution.

Temporary Protection: After Syrians and Palestinians, Iraqis were the third largest group of refugees in the country. The government did not provide a temporary protection regime for asylum seekers, and it regularly deported refugees and asylum seekers who may have had valid claims to protected status. According to the UNHCR there were 217 refugees and asylum seekers in detention as of October 31. Also as of October 31, the DGS deported nine persons despite objections by the UNHCR. Of the nine individuals, five had refugee status and four were asylum seekers.

The UNHCR continued to intervene with authorities to request the release of persons of concern who were detained either beyond their sentence or for illegal entry/stay.

At year's end, 5,856 Iraqis were registered with the UNHCR. The Danish Refugee Council estimated that 15,000 to 20,000 Iraqis were living in the country; many entered the country illegally in search of jobs, education, and security. During the

year the government provided limited services for Iraqi refugees. The DGS did not grant a grace period during the year for foreigners who had fallen into illegal status to allow them to regularize their residency in the country.

### **Stateless Persons**

Citizenship is derived exclusively from the father, resulting in statelessness for children of a citizen mother and a noncitizen father when registration under the father's nationality is not possible. This discrimination in the nationality law particularly affected Palestinians. In addition, some children born to Lebanese fathers may not have had their births registered due to a lack of understanding of the regulations or administrative obstacles. The problem was compounded by the fact that nonnational status is a hereditary status that stateless individuals pass to their children. There were no official statistics on the size of the stateless population.

Approximately 3,000 Palestinian refugees were not registered with UNRWA or the government. Also known as undocumented, or non-ID, Palestinians, most moved to the country after the expulsion of the PLO from Jordan in 1971. Non-ID Palestinians faced restrictions on movement and lacked access to fundamental rights under the law. Non-ID Palestinians who were not registered in other fields were not necessarily eligible for the full range of services provided by UNRWA, such as hospitalization coverage or some social services. UNRWA provided primary health care, education, and vocational training services to non-ID Palestinians. The majority of non-ID Palestinians were men, many of them married to UNRWA-registered refugees or citizen women, who could not transmit refugee status or citizenship to their husbands or children. In 2011 the government issued a special identification card to an estimated 2,000 non-ID Palestinians, but the Ministry of the Interior rejected the applications of 1,000 additional Palestinian refugees for the card.

During 2012 the Directorate of Political and Refugee Affairs continued to extend late registration to Palestinian refugee children born since 2005. It previously had been the directorate's policy to deny late registration of births of Palestinian refugee children who were above the age of two.

Approximately 1,000 to 1,500 of an estimated 75,000 Kurds living in the country lacked citizenship, despite decades of family presence in the country. Most were descendants of migrants and refugees who left Turkey and Syria during World War I but were denied citizenship to preserve the country's sectarian balance. The

government issued a naturalization decree in 1994, but high costs and other obstacles prevented many individuals from acquiring official status. Some individuals who received official status had their citizenship revoked in 2011 as a result of a 2011 presidential decree. Others held an “ID under consideration” document without date or place of birth.

Stateless individuals lacked official identity documents that would permit them to travel abroad and could face difficulties traveling in the country or risked detention for not carrying identity documents. They had limited access to the regular employment market and no access to many professions. In addition, they could not access public schools or public health-care facilities, could not register marriages or births, and were unable to own or inherit property.

### **Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government**

Although the law provides citizens the right to change their government peacefully in periodic, free, and fair elections based on universal suffrage, lack of government control over parts of the country, defects in the electoral process, and corruption in public office significantly restricted this right. The president and parliament nominate the prime minister, who, with the president, chooses the cabinet.

#### **Elections and Political Participation**

Recent Elections: On May 31, parliament postponed legislative elections for 17 months, from June 2013 until November 2014, extending its term. Observers concluded that the 2009 parliamentary elections were generally free and fair, with minor irregularities, such as instances of vote buying. The NGO Lebanese Transparency Association reported that its monitors witnessed vote buying through cash donations on election day in many electoral districts.

Political Parties: All major political parties and numerous smaller ones were almost exclusively based on confessional affiliation, and parliamentary seats were allotted on a sectarian basis.

Participation of Women and Minorities: There were significant cultural barriers to women’s participation in politics. Prior to 2004 no woman held a cabinet position, and there have been only three women ministers since then. During the year no women served in the cabinet approved by parliament in 2011. Only four of 128 members of parliament were women, and all were close relatives of previous male

members. With a few notable exceptions, leadership of political parties effectively excluded women, limiting their opportunities for higher office.

Minorities participated in politics to some extent. Regardless of the number of its adherents, every government-recognized religion, except Coptic Christianity, Ismailism, and Judaism, was allocated at least one seat in parliament. Three parliamentarians representing minorities (one Syriac Orthodox Christian and two Alawites) were elected in the 2009 elections. These groups also held high positions in government and the LAF. As Palestinian refugees are not citizens, they have no political rights. An estimated 17 Palestinian factions operated in the country, generally organized around prominent individuals. Most Palestinians lived in refugee camps that one or more factions controlled. Palestinian refugee leaders were not elected, but there were popular committees that met regularly with UNRWA and visitors.

#### **Section 4. Corruption and Lack of Transparency in Government**

Although the law provides criminal penalties for official corruption, the government did not implement the law effectively, and officials often engaged in corrupt practices with impunity and on a wide scale. Government security officials, agencies, and police were subject to laws against bribery and extortion. In practical terms, the lack of strong enforcement limited the laws' effectiveness.

Corruption: Observers widely considered government control of corruption to be poor. Types of corruption generally encountered included systemic clientelism; judicial failures, especially in investigations of politically motivated killings; electoral fraud facilitated by the absence of preprinted ballots; and bribery. Bribes customarily accompanied bureaucratic transactions. In addition to regular fees, customers paid bribes for a new driver's license, car registration, or residential building permits.

On November 13, the secretary general of the country's Higher Relief Committee, Ibrahim Bashir, was charged with embezzling an estimated 15 billion Lebanese pounds (\$10 million) in public funds to bank accounts outside the country. Prime Minister Najib Miqati removed Bashir from his position as the country's chief distributor of funds to provide assistance during emergencies.

Whistleblower Protection: There are no laws regarding whistleblower protection.



Financial Disclosure: The law requires the president of the republic, the president of the Chamber of Deputies, and the president of the Council of Ministers to disclose their financial assets in a sealed envelope deposited at the Constitutional Council, but the information is not available to the public. Judges disclose their financial assets in a sealed envelope at the Higher Judicial Council and civil servants deposit their sealed envelopes at the Civil Servants Council, but the information was also not available to the public. The Court of Accounts, the Central Inspection Department, the Central Bank's Special Investigation Committee, and the Disciplinary Board were tasked with fighting corruption.

A 2011 report by the Lebanese Transparency Association claimed that corruption had become institutionalized. As parliament had not passed a budget since 2006, there was limited parliamentary or auditing authority oversight of revenue collection and expenditures.

Public Access to Information: There are no laws regarding public access to government documents, and the government generally did not respond to requests for documents.

## **Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights**

A number of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials generally were not responsive to these groups' views, and there was limited or no accountability for human rights violations.

Government Human Rights Bodies: The parliamentary Committee on Human Rights struggled to move forward existing proposals to make legal changes to guide ministries on protecting specific human rights or, for example, improving prison conditions. The Ministry of Interior also had a human rights department to monitor and improve prison conditions.

## **Section 6. Discrimination, Societal Abuses, and Trafficking in Persons**

The law provides for equality among all citizens and prohibits discrimination based on race, gender, disability, language, or social status. Although the government generally respected these provisions, they were not enforced, especially in

economic matters, and aspects of the law and traditional beliefs discriminated against women.

## **Women**

Rape and Domestic Violence: The law criminalizes rape. While the government effectively enforced the law, interpretation of sharia law precluded full implementation of civil law equally in all provinces. Rape and domestic violence were underreported. The minimum prison sentence for a person convicted of rape is five years, or seven years for raping a minor. According to the penal code, the state would not prosecute a rapist and would nullify his conviction if the rapist married his victim. The law does not criminalize spousal rape and family violence towards women. According to the domestic NGO KAFA (Enough) Violence and Exploitation, 80 percent of domestic violence victims the NGO assisted had suffered spousal rape.

Neither the penal code nor personal status laws governing family matters adjudicated by state-sanctioned religious courts specifically prohibit domestic violence. There were no authoritative statistics on its extent, but there was a broad consensus that domestic violence, including spousal abuse, was a serious and widespread problem. A 2010 UN Population Fund assessment estimated that there were high rates of domestic violence in the country. Despite a law that sets a maximum sentence of three years in prison for battery, some religious courts may legally require a battered wife to return to her home despite physical abuse. Foreign domestic servants, usually women, often were mistreated, abused, and in some cases raped or placed in slavery-like conditions (see section 7.c.). Some police, especially in rural areas, treated domestic violence as a social rather than criminal matter.

The government provided legal assistance to domestic violence victims who could not afford it, but in most cases police ignored complaints submitted by battered or abused women. The NGO Lebanese Council to Resist Violence against Women and KAFA worked to reduce violence against women by offering counseling and legal aid and raising awareness about the problem. During the year KAFA assisted in 2,808 new cases and followed up on 121 old cases of victims of violence, the majority of which concerned domestic violence.

Sexual Harassment: The law prohibits sexual harassment, but it was a widespread problem, and authorities did not enforce the law effectively. According to the UN Population Fund, the labor law does not explicitly prohibit sexual harassment in

the workplace; it merely gives an employee, male or female, the right to resign without prior notice from his or her position in the event that an indecent offense is committed towards the employee or a family member by the employer or his or her representative, without any legal consequences for the perpetrator.

Reproductive Rights: Couples and individuals have the right to decide freely the number, spacing, and timing of their children and to have the information and means to do so free from discrimination and violence. Some women in rural areas faced social pressure on their reproductive choices. There are no legal prohibitions or governmental encumbrances to equal access under the law for reproductive health-care products or services, although the most advanced clinics and practices were in larger metropolitan areas.

Discrimination: Women suffered discrimination under the law and in practice. Social pressure against women pursuing some careers was strong in some parts of society. Men sometimes exercised considerable control over female relatives, restricting their activities outside the home or their contact with friends and relatives. In matters of child custody, inheritance, and divorce, personal status laws provide unequal treatment across the various confessional court systems but generally discriminate against women. For example, Sunni civil courts apply an inheritance law that provides a son twice the inheritance of a daughter. Religious law on child custody matters favors the father in most instances. Nationality law also discriminates against women, who may not confer citizenship to their spouses and children, although widows may confer citizenship to their minor children. By law women may own property, but they often ceded control of it to male relatives due to cultural reasons and family pressure.

The law provides for equal pay for equal work for men and women, but in the private sector there was discrimination regarding the provision of benefits. Although they composed the majority of the resident population, women made up only 14 percent of the workforce and only 8 percent of senior officials and managers, according to the World Economic Forum. Only 25 percent of women, compared with 75 percent of men, were in the formal labor force, and these women earned on average less than 25 percent of what men earned.

The Women's Affairs Division in the Ministry of Social Affairs is the highest-level governmental organization dealing with women's issues. The division undertook some projects to address sexual or gender-based violence, such as providing counseling and shelter for victims and training ISF personnel to combat it in prisons. In 2012 women were commissioned as ISF officers for the first time.

## Children

Birth Registration: Citizenship is derived exclusively from the father, which may result in statelessness for children of a citizen mother and noncitizen father who cannot transmit his own citizenship (see section 2.d.). If a child's birth is not registered within the first year, the process for legitimating the birth is long and costly, often deterring families from registration.

Some refugee children and children of foreign domestic workers also faced obstacles to equal treatment under the law. NGOs reported discrimination against them, although some could attend public school.

Education: Education is free and compulsory through the primary phase for citizens. Noncitizen children, including those born of noncitizen fathers and citizen mothers, do not have this right. Certain public schools had quotas for noncitizen children, but there were no special provisions for children of female citizens, and spaces remained subject to availability. Boys and girls have nearly equal rates of primary education, with women outnumbering men in secondary and tertiary education.

Child Abuse: According to a 2012 study carried out by KAFA in partnership with the Ministry of Social Affairs, more than 885,000 children were victims of psychological abuse, of which 738,000 were also victims of physical abuse and 219,000 were victims of sexual abuse. In September 2012 the ministry, in cooperation with Save the Children and the Higher Council for Childhood, launched an awareness campaign called "No for Violence Against Children" to combat all forms of violence against children. The Ministry of Social Affairs had a hotline to report cases of child abuse.

Syrian refugee children were vulnerable to child labor and exploitation.

Children reportedly joined local gangs engaged in sectarian violence in the northern part of the country.

Forced and Early Marriage: The age of legal maturity is 18 for men and 17 for women. Family matters are governed by confessionally determined personal status law, and minimum ages acceptable for marriage differ accordingly. According to UN statistics, 5 percent of women were married by age 19. Stories of early

marriage or forced marriage of children were increasingly prevalent in the Syrian refugee community.

Sexual Exploitation of Children: The penal code prohibits and punishes commercial sexual exploitation, child pornography, and forced prostitution. Prescribed punishment for commercial sexual exploitation of a person under the age of 21 is imprisonment for one month to one year and fines between 50,000 and 500,000 Lebanese pounds (\$33 and \$333). The maximum sentence for commercial sexual exploitation is two years' imprisonment. The minimum age for consensual sex is 18, and statutory rape penalties include hard labor for a minimum of five years and imprisonment for a minimum of seven years if the victim is younger than 15. Imprisonment ranges from two months to two years if the victim is between 15 and 18. The government generally enforced the law. The ISF investigated at least four cases of child trafficking and referred them to the judiciary.

Displaced Children: The Ministry of Education stopped permitting new Syrian students to enroll in first-shift classes. In certain schools Syrian refugees may enroll in second-shift courses based on availability (see section 2.d.).

Some displaced children lived and worked on the street (see section 7.c.).

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. For country-specific information see the Department of State's report at [http://travel.state.gov/abduction/country/country\\_5925.html](http://travel.state.gov/abduction/country/country_5925.html).

## **Anti-Semitism**

At year's end there were approximately 100 Jews living in the country and 6,000 registered Jewish voters who lived abroad but had the right to vote in parliamentary elections.

The national school curriculum materials on tolerance education did not contain materials on the Holocaust. In March the daily *Al-Sharq* published an article by Lebanese writer Sana Kojok which claimed that, during Passover, the Jews eat matzoh made with the blood of non-Jews, a traditional anti-Semitic conspiracy charge.

Hizballah-owned, Lebanon-based media outlet Al Manar continued to broadcast anti-Semitic content.

The Ministry of Interior delayed validation of the 2008 elections of the Israeli Communal Council. The next elections will be held in 2014.

### **Trafficking in Persons**

See the Department of State's *Trafficking in Persons Report* at [www.state.gov/j/tip/](http://www.state.gov/j/tip/).

### **Persons with Disabilities**

Although prohibited by law, discrimination against persons with disabilities continued. The law defines a “disability” as a physical, sight, hearing, or mental impairment. The law stipulates that at least 3 percent of all government and private sector positions be filled by persons with disabilities, provided such persons fulfill the qualifications for the position, but there was no evidence it was enforced. The law mandates access to buildings by persons with disabilities, but the government failed to amend building codes. Many persons with mental disabilities received care in private institutions, several of which the government subsidized.

The Ministry of Social Affairs and the National Council of Disabled are responsible for protecting the rights of persons with disabilities. According to the president of the Arab Organization of Disabled People, little progress has occurred since parliament passed the law on disabilities in 2000. Approximately 100 relatively active but poorly funded private organizations made most of the efforts to assist persons with disabilities.

In the 2009 election, a Lebanese Physically Handicapped Union study showed that only six of the country's 1,741 polling stations satisfied all criteria for accessibility. Depending on the type and nature of the disability, children with a disability may attend regular school. Due to lack of awareness or knowledge, school staff often did not identify a specific disability in children and could not adequately advise parents. In such cases children often repeated classes or dropped out of school.

The public school system was ill equipped to accommodate students with disabilities. Problems included a poor regulatory framework; poor infrastructure

that was not accessible to persons with disabilities; curricula that did not include material to assist children with disabilities; laboratories and workshops that did not have the equipment required by curricula for children with disabilities; laboratories that lacked space and access for persons with disabilities, especially those using wheelchairs; teaching media and tools that relied increasingly on computers and audiovisual material that wasn't accessible for students with disabilities, including blind, deaf, and physically disabled students; and lack of accessible transportation to and from schools.

The Ministry of Education and Higher Education's 2002 decree for new school buildings stipulated that "schools should include all necessary facilities in order to receive the physically challenged."

Some NGOs (often managed by religious entities) offered education and health services for children with disabilities. The Ministry of Social Affairs contributed to the cost per child, although the ministry often delayed payments to the organizations. According to the Ministry of Social Affairs, it supported school attendance, vocational training, and rehabilitation for approximately 7,300 persons in 2012.

### **National/Racial/Ethnic Minorities**

A 2011 report funded by the EU and written by a coalition of local human rights organizations, *A Culture of Racism in Lebanon*, identified a widespread pattern of discrimination against individuals who did not appear ethnically Lebanese. Lebanese of African descent attributed discrimination to the color of their skin and claimed harassment by police, who periodically demanded to see their papers. Arab, African, and Asian students, professionals, and tourists reported being denied access to bars, clubs, restaurants, and private beaches. For example, on August 22, Joumana Haddad blogged on Now Lebanon's website that she planned to take her domestic migrant helper, Mehret, to spend a day at the beach as a birthday gift. As soon as they entered the swimming pool, the lifeguard blew his whistle and said "servants" were not allowed in the pool.

Syrian workers, usually employed in the manual labor and construction sectors, continued to suffer discrimination, as they did following the 2005 withdrawal of Syrian forces from the country.

### **Societal Abuses, Discrimination, and Acts of Violence Based on Sexual Orientation and Gender Identity**

Official and societal discrimination against LGBT persons persisted during the year. There is no all-encompassing antidiscrimination law to protect LGBT persons. The law prohibits “unnatural sexual intercourse,” an offense punishable by up to one year in prison but rarely applied. In 2010 the domestic NGO Helem (from the Arabic acronym for Lebanese Protection for LGBT Persons) reported fewer than 10 prosecutions. The law sometimes was applied to men engaging in same-sex sexual activity but was rarely applied to women, although Helem reported that police used the law to blackmail women.

Meem, the first NGO in the country exclusively for nonheterosexual women, and Helem hosted regular meetings in a safe house, provided counseling services, and carried out advocacy projects for the LGBT community.

On April 20, Antoine Chakhtoura, head of the Dekwaneh municipality, ordered the closure of the Ghost nightclub by the municipality’s police and detained four individuals who were forced to undress at the municipality’s headquarters to determine their sex. Chakhtoura accused the nightclub of “promoting prostitution, drugs, and homosexuality.” During an interview Chakhtoura stated, “Of course we made them take off their clothes; we saw a scandalous situation, and we had to know what these people were. Is it a woman or a man? It turned out to be a half-woman and half-man, and I do not accept this in my Dekwaneh.”

In July 2012 the ISF arrested 36 men during a raid on a movie theater suspected of screening pornographic movies. On orders by the public prosecutor, forensic doctors subsequently subjected the men to anal examinations to “prove” whether they had engaged in same-sex sexual conduct. Police released all the men but later charged three of them under Article 534, partly on the basis of the examinations.

On August 8, the head of the Lebanese Doctor’s Syndicate, Dr. Sharaf Abu Sharaf, issued a directive calling for an end to anal examinations, stating that they were useless in determining consensual anal sexual activity and that they constituted a form of torture. In a statement to the daily newspaper *Al-Akhbar*, Justice Minister Shakib Qortbawi declared that he had earlier written to the public prosecutor urging him “to halt random rectal examination procedures, after the issue was raised by human rights organizations.” The public prosecutor’s subsequent directive, however, appeared to institutionalize anal examinations. While the new directive instructed that the anal examination be carried out only “with the consent of the accused,” it stated that if the accused refused to undergo the examination, he should be informed that his refusal “constitutes proof of the crime.” In a



subsequent interview with the daily newspaper *As-Safir* on September 1, Minister Qortbawi asked that judges listen to him and the Lebanese Medical Association's opinion criticizing the tests. There was no official action to investigate or punish those complicit in such abuses.

Information was not available on official or private discrimination in employment, occupation, housing, statelessness, or lack of access to education or health care based on sexual orientation or gender identity. The government did not collect such information and individuals who faced problems were reluctant to report incidents due to fear they could face additional discrimination. There were no government efforts to address potential discrimination.

NGOs claimed that LGBT individuals underreported incidents of violence and abuse due to negative social stereotypes.

### **Other Societal Violence or Discrimination**

As in previous years, there were reports of incidents of societal violence and interreligious strife.

## **Section 7. Worker Rights**

### **a. Freedom of Association and the Right to Collective Bargaining**

The law provides for the right of workers to form and join trade unions, strike, and bargain collectively. The law, however, places a number of restrictions on these rights. The right of some public sector employees, domestic workers, and some agricultural workers to form or join unions is not protected by law. The Ministry of Labor must approve the formation of unions, and it controlled the conduct of all trade union elections, including election dates, procedures, and ratification of results. The law permits the administrative dissolution of trade unions and bars trade unions from political activity.

There are significant restrictions on the right to strike; however, public employees and domestic workers have the right to strike. Unions have the right to demonstrate after providing advance notice to and receiving approval from the Ministry of Interior. Organizers of a strike must announce the number of participants in advance, and 5 percent of a union's members must take responsibility for maintaining order during the strike.

The law protects the right of workers to bargain collectively, but a minimum of 60 percent of workers must agree on the goals beforehand. Collective bargaining agreements must be ratified by two-thirds of union members at a general assembly. In July the Union of Syndicates of Bank Employees and the Association of Banks successfully negotiated and agreed on a new collective contract after the previous one had expired in 2010.

The law prohibits antiunion discrimination. Under the law when employers misuse or abuse their right to terminate an elected union official's contract, including for union activity, the worker is entitled to indemnity and can institute proceedings before a conciliation board. The board adjudicates the case, after which an employer may be compelled to reinstate the worker.

By law foreigners with legal resident status may join trade unions. The labor code does not cover domestic workers, day laborers, temporary workers in the public services, and some categories of agricultural workers.

Refugees generally may organize their own unions. Because of restrictions on their right to work, few refugees participated actively in trade unions. While some unions required citizenship, others were open to foreign nationals whose home countries had reciprocity agreements with Lebanon.

The government's enforcement of applicable laws was weak, including with regard to prohibitions on antiunion discrimination.

Freedom of association and the right to collective bargaining were not always respected. The government and other political actors interfered with the functioning of worker organizations, in particular the main federation, the General Confederation of Lebanese Workers (CGTL). The CGTL remained the only national confederation recognized by the government, although several unions unofficially broke off from the CGTL and no longer participated in its meetings or recognized it as an independent and nonpartisan representative of workers. The Union of Coordination Committees (UCC), a grouping of public and private teachers as well as civil servants, held a strike to push the government to send its promised revised salary scale to parliament. The UCC overshadowed the CGTL and its inaction in the face of labor demands and did not end its strike until the cabinet promised to send the revised salary scale. The four-week strike, which ended on March 25, paralyzed public education, public administration services, and part of private education. The cabinet later delayed implementing its promise but eventually sent the salary scale to parliament in June.

The law provides that unions conduct activities free from interference, but the Ministry of Labor interfered in union elections. Government officials and other political figures sought to influence union activities. In the past, government officials encouraged the establishment of unions for political purposes to gain control of the CGTL.

Antiunion discrimination and other instances of employer interference in union functions occurred. Some employers fired workers in the process of forming a union before the union was formally established and published in the *Official Gazette*.

### **b. Prohibition of Forced or Compulsory Labor**

The law prohibits all forms of forced or compulsory labor, but the government did not effectively enforce the law.

The government made some efforts to prevent or eliminate forced labor during the year. In 2012 it published the implementation decree for a 2011 law prohibiting forced or compulsory labor. The decree specified the conditions for the Ministry of Justice to contract with local NGOs to provide assistance and protection to victims of trafficking.

Children, foreign workers employed as domestic servants, and other foreign workers sometimes worked under forced labor conditions. The law provides protection for domestic workers against forced labor, but domestic work is excluded from protections under the labor law, leaving workers vulnerable to exploitation. In violation of the law, employment agencies and employers routinely withheld foreign workers' passports, especially in the case of domestic workers, sometimes for years. According to NGOs assisting migrant workers, some employers withheld salaries for the duration of the contract, which was usually two years.

Also see the Department of State's *Trafficking in Persons Report* at [www.state.gov/j/tip/](http://www.state.gov/j/tip/).

### **c. Prohibition of Child Labor and Minimum Age for Employment**

The minimum age for employment is 14, and the law prescribes the occupations that are legal for juveniles. The law requires juveniles, defined as children

between the ages of 14 and 18, to undergo a medical exam by a doctor certified by the Ministry of Public Health to assure they are physically fit for the type of work they are asked to perform. The law prohibits employment of juveniles younger than 18 for more than seven hours per day and requires one hour of rest if work lasts more than four hours. The law prohibits juveniles younger than 17 from working in jobs that jeopardize their health, safety, or morals and from working between 7 p.m. and 7 a.m. The law prohibits the employment of juveniles younger than 16 in industrial jobs or jobs that are physically demanding or harmful to their health.

An updated list of hazardous occupations, adopted in 2012, contains a comprehensive list of prohibited occupations, including working on streets. The list also specifies activities that are totally prohibited to minors under the age of 18 and activities prohibited to minors under the age of 16 unless they are provided with proper protection and adequate training. Under the penal code, violations may result in penalties that include a fine of 250,000 Lebanese pounds (\$167), one to three months' imprisonment, and forced closure of the establishment.

The Ministry of Labor is responsible for enforcing child labor requirements through its Child Labor Unit. In addition, the law charges the Ministry of Justice, the ISF, and the Higher Council of Childhood (HCC) with enforcing laws related to forced labor and child trafficking, commercial sexual exploitation of children, and the use of children in illicit activities. The HCC is also responsible for referring children held in protective custody to appropriate NGOs to find safe living arrangements. There were approximately 25 labor inspectors charged with child labor inspections. Overall, the government did not enforce child labor laws effectively, in part because of inadequate resources.

The government made efforts to prevent child labor and remove children from such labor during the year. In May 2012 the Ministry of Labor revived the interministerial National Steering Committee on Child Labor, chaired by the minister of labor. In November the committee launched a national action plan to eliminate the worst forms of child labor by 2016. In September 2012 the Ministry of Social Affairs and the HCC, in cooperation with Save the Children, launched a national awareness campaign to combat all forms of violence against children, including child labor.

Child labor occurred, including in its worst forms. While up-to-date statistics on child labor were unavailable, anecdotal evidence during the year suggested that the number of child workers had risen and that more children were working in the

informal sector, including commercial sexual exploitation (also see section 6, Children).

Child labor was predominantly concentrated in the informal sector, including in small family enterprises, mechanical workshops, carpentry, construction, manufacturing, industrial sites, welding, agriculture, tobacco, and fisheries. Children worked unofficially in some of these informal sector jobs, often in small and family businesses that were not part of any formal activity. Street children worked selling goods, polishing shoes, and washing car windows. Anecdotal evidence also suggested that child labor was prevalent in Palestinian refugee camps, among Iraqi refugees and Romani communities, and among an increasingly prevalent Syrian refugee community in the country. Some children worked in hazardous conditions, including street begging.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at [www.dol.gov/ilab/programs/ocft/tda.htm](http://www.dol.gov/ilab/programs/ocft/tda.htm).

#### **d. Acceptable Conditions of Work**

The legal minimum wage was raised in January 2012 to 675,000 Lebanese pounds (\$450) per month across all sectors and industries.

The law prescribes a standard 48-hour workweek with a weekly rest period that must not be less than 36 consecutive hours. The law stipulates 48 hours as the maximum duration of work per week in most corporations except agricultural entities. A 12-hour day is permitted under certain conditions, including a stipulation that overtime pay is 50 percent higher than pay for normal hours. The law does not set limits on compulsory overtime. The law includes specific occupational health and safety regulations and requires employers to take adequate precautions for employee safety.

Domestic workers are not covered under the labor law or other laws related to acceptable conditions of work. Such laws also do not apply to family concerns, day laborers, temporary workers in the public sector, or workers in the agricultural sector.

The Ministry of Labor is responsible for enforcing regulations related to acceptable conditions of work but did so unevenly. The ministry employed approximately 130 labor inspectors and assistant inspectors. The number of inspectors, available resources, and legal provisions were not sufficient to deter violations.

Workers in the industrial sector worked an average of 35 hours per week, while workers in other sectors worked an average of 32 hours per week. Some private sector employers failed to provide employees with family and transportation allowances as stipulated under the law and did not register them with the National Social Security Fund (NSSF).

Some companies did not respect legal provisions governing occupational health and safety in specific sectors, such as the construction industry. Workers could report violations directly to the CGTL, Ministry of Labor, or NSSF. In most cases they preferred to remain silent due to fear of arbitrary dismissal.

Violations of wage, overtime, and occupational health and safety standards were most common in the construction sector and among migrant workers, in particularly foreign domestic workers.

Foreign migrant workers arrived in the country through local recruitment agencies and source-country recruitment agencies. Although the law requires recruitment agencies to have a license from the Ministry of Labor, the government did not adequately monitor their activities. A sponsorship system tied foreign workers' legal residency to a specific employer, making it difficult for foreign workers to change employers. If employment is terminated, a worker loses residency. This made many foreign migrant workers reluctant to file complaints in order to avoid illegal status.

There is no official minimum wage for domestic workers. Official contracts stipulated a wage ranging from 150,000 to 450,000 Lebanese pounds (\$100 to \$300) per month for domestic workers, depending on the nationality of the worker. Migrant domestic workers were granted some labor protections through a unified standard contract, which was registered with the DGS in order for the worker to obtain residency. The standard contract covered uniform terms and conditions of employment, while the section covering wages was completed individually.

Some employers mistreated, abused, and raped foreign domestic workers, who were mostly of Asian and African origin. Domestic workers often worked long hours and, in many cases, did not receive vacations or holidays. Victims of abuse may file civil suits or seek legal action, often with the assistance of NGOs, but most victims, counseled by their embassies or consulates, settled for an administrative solution that usually included monetary compensation and repatriation.

Perpetrators of abuses against foreign domestic workers were not prosecuted further for a number of reasons, including the victims' refusal to press charges and lack of evidence. An unknown number of other cases of nonpayment of wages were settled through negotiation. According to source country embassies and consulates, many workers did not report violations of their labor contracts until after they returned to their home countries, as they preferred not to stay in the country for a lengthy judicial process.

In March 2012 LBCI television released a video by an anonymous bystander in which a labor recruiter, identified as Ali Mahfouz, physically abused Ethiopian domestic worker Alem Dechasa-Desisa outside the Ethiopian consulate in Beirut. Dechasa-Desisa subsequently committed suicide at the Deir al-Saleeb psychiatric hospital. Following investigation, the Beirut prosecutor general charged Mahfouz with contributing to and causing Dechasa-Desisa's suicide, and the case was referred to the Beirut penal court. By year's end, however, the Labor Ministry did not report taking any action against Mahfouz's labor agency.

While official businesses and factories strove to meet international standards for working conditions with respect to occupational safety and health, conditions in informal factories and businesses were poorly regulated and often did not meet these standards. The Ministry of Industry is responsible for enforcing regulations to improve safety in the workplace. The regulations require industries to have three types of insurance (fire, third-party, and workers policies) and to implement proper safety measures. The ministry has the authority to revoke a company's license if its inspectors find a company in noncompliance.